

VCU318692 Thomas, Taylor vs. Gro-Frow, Inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-06-29

Motion: Plaintiff Thomas' Continued Motions to Compel Initial Responses to: (1) Form Interrogatories – Employment – Set One as to Defendant 5G; (2) Special Interrogatories – Set One as to Defendant 5G; (3) Requests for Production – Set One as to Defendant 5G (4) Form Interrogatories – Employment – Set One as to Defendant Shel-Don; (5) Special Interrogatories – Set One as to Defendant Shel-Don; (6) Requests for Production – Set One as to Defendant Shel-Don (7) Form Interrogatories – Employment – Set One as to Defendant Groppetti; (8) Special Interrogatories – Set One as to Defendant Groppetti; (9) Requests for Production – Set One as to Defendant Groppetti (10) Form Interrogatories – Employment – Set One as to Defendant Six-G; (11) Special Interrogatories – Set One as to Defendant Six-G; (12) Requests for Production – Set One as to Defendant Six-G (13) Form Interrogatories – Employment – Set One as to Defendant Gro-Fro; (14) Special Interrogatories – Set One as to Defendant Gro-Fro; (15) Requests for Production – Set One as to Defendant Gro-Fro (16) Form Interrogatories – Employment – Set One as to Defendant Blam-Jade; (17) Special Interrogatories – Set One as to Defendant Blam-Jade; (18) Requests for Production – Set One as to Defendant Blam-Jade; (19) Form Interrogatories – Employment – Set One as to Defendant GAF Holdings; (20) Special Interrogatories – Set One as to Defendant GAF Holdings; (21) Requests for Production – Set One as to Defendant GAF Holdings; (22) Form Interrogatories – Employment – Set One as to Defendant GAF Monterey; (23) Special Interrogatories – Set One as to Defendant GAF Monterey; (24) Requests for Production – Set One as to Defendant GAF Monterey & Plaintiff Thomas' Motions to Deem Admissions Admitted as to: (25) Requests for Admission – Set One as to Defendant 5G (26) Requests for Admission – Set One as to Defendant Shel-Don (27) Requests for Admission – Set One as to Defendant Groppetti (28) Requests for Admission – Set One as to Defendant Six-G (29) Requests for Admission – Set One as to Defendant Gro-Fro (30) Requests for Admission – Set One as to Defendant Blam-Jade (31) Requests for Admission – Set One as to Defendant GAF Holdings (32) Requests for Admission – Set One as to Defendant GAF Monterey and for sanctions

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Re: Thomas, Taylor vs. Gro-Frow, Inc.

Case No.: VCU318692

Date: June 29, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff Thomas' Continued Motions to Compel Initial Responses to:

(1) Form Interrogatories – Employment – Set One as to Defendant 5G; (2) Special Interrogatories – Set One as to Defendant 5G; (3) Requests for Production – Set One as to Defendant 5G

(4) Form Interrogatories – Employment – Set One as to Defendant Shel-Don; (5) Special Interrogatories – Set One as to Defendant Shel-Don; (6) Requests for Production – Set One as to Defendant Shel-Don

(7) Form Interrogatories – Employment – Set One as to Defendant Groppetti; (8) Special Interrogatories – Set One as to Defendant Groppetti; (9) Requests for Production – Set One as to Defendant Groppetti

(10) Form Interrogatories – Employment – Set One as to Defendant Six-G; (11) Special Interrogatories – Set One as to Defendant Six-G; (12) Requests for Production – Set One as to Defendant Six-G

(13) Form Interrogatories – Employment – Set One as to Defendant Gro-Fro; (14) Special Interrogatories – Set One as to Defendant Gro-Fro; (15) Requests for Production – Set One as to Defendant Gro-Fro

(16) Form Interrogatories – Employment – Set One as to Defendant Blam-Jade; (17) Special Interrogatories – Set One as to Defendant Blam-Jade; (18) Requests for Production – Set One as to Defendant Blam-Jade;

(19) Form Interrogatories – Employment – Set One as to Defendant GAF Holdings; (20) Special Interrogatories – Set One as to Defendant GAF Holdings; (21) Requests for Production – Set One as to Defendant GAF Holdings;

(22) Form Interrogatories – Employment – Set One as to Defendant GAF Monterey; (23) Special Interrogatories – Set One as to Defendant GAF Monterey; (24) Requests for Production – Set One as to Defendant GAF Monterey

&

Plaintiff Thomas' Motions to Deem Admissions Admitted as to:

(25) Requests for Admission – Set One as to Defendant 5G

(26) Requests for Admission – Set One as to Defendant Shel-Don

(27) Requests for Admission – Set One as to Defendant Groppetti

(28) Requests for Admission – Set One as to Defendant Six-G

(29) Requests for Admission – Set One as to Defendant Gro-Fro

(30) Requests for Admission – Set One as to Defendant Blam-Jade

(31) Requests for Admission – Set One as to Defendant GAF Holdings

(32) Requests for Admission – Set One as to Defendant GAF Monterey

and for sanctions

Tentative Ruling: To first inquire as to the status of resolution of these motions and/or a global resolution of this matter pursuant to the stipulation filed November 5, 2025 based on the April 20, 2026 mediation. However, the Court notes Plaintiff's

June 12, 2026 case management statement indicating that the mediation did not take place, in part due to a failure to produce documents and that "Plaintiff now intends to pursue the outstanding discovery sought..."

If no resolution has been reached, the Court's tentative ruling is as follows:

(1) through (24): To grant the motions and order responses due no later than thirty (30) days from notice of this ruling; Plaintiffs to give notice;

(25) – (32): To grant the motions and deem the admissions admitted;

To sanction each Defendant, and counsel of record, in the amount of \$350; sanctions are due no later than thirty (30) days from notice of this ruling; Plaintiffs to give notice.

Facts Common to (1) through (32)

This matter was initially filed September 12, 2024 in the County of Monterey against Defendants 5G's Automotive, Inc., Shel-Don, Inc., Groppetti Ltd., Inc., Six-G's Automotive, Inc., Gro-Frow, Inc., Blam-Jade LP, GAF Holdings, Inc., and GAF Monterey, Inc.

Defendants demurred to the complaint and moved to transfer venue to Tulare County.

Thereafter, Plaintiffs filed an amended complaint on December 12, 2024 for various Labor Code violations on a class basis and for civil penalties under PAGA.

The motion to transfer venue was unopposed and granted. Venue was transferred February 24, 2025.

No further responsive pleading appears filed by Defendants.

On September 22, 2025, Plaintiffs filed thirty-three (33) motions to compel initial responses or to deem admissions admitted against these Defendants. (The Court notes the 33rd motion filed appears duplicative of (1) Motion to Compel Initial Responses as to Form Interrogatories – Employment – Set One as to Defendant 5G.)

The discovery at issue was served by Plaintiffs on Defendants, via counsel, on June 2, 2025.

Responses were due no later than July 7, 2025.

As of the date of filing these motions, no responses have been served.

Plaintiffs seek monetary damages of \$1,650 consisting of 3 hours at the rate of \$550 per hour for each motion.

No oppositions have been filed.

Plaintiffs filed a notice of non-opposition to each motion.

Authority and Analysis

Interrogatories - (1), (2), (4), (5), (7), (8), (10), (11), (13), (14), (16), (17), (19), (20), (22), (23)

Based on Defendants' failures to respond to the first sets of form and special interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Defendants provide full and complete verified responses, without objections, to Plaintiffs' first sets of form interrogatories and special interrogatories, within thirty (30) days after service of the notice of this ruling for this motion. Plaintiffs shall give notice.

Requests for Production of Documents – (3), (6), (9), (12), (15), (18), (21), (24)

Based on Defendants' failures to respond to the first sets of requests for production of documents, the Court orders, under Code of Civil Procedure section 2031.300(a), that Defendants provide full and complete verified responses, without objection, to Plaintiffs' first sets of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Plaintiffs shall give notice.

Requests for Admissions – (25) – (32)

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted. Here, Defendants have failed to serve a timely responses and Plaintiffs have moved for orders to deem the admission admitted.

Based on the foregoing, the Court grants Plaintiffs' motions.

The facts and allegations alleged in Requests for Admissions are deemed admitted

Sanctions

As noted above, Plaintiffs seek a total of \$52,800 in sanctions (\$1,650 x 32 motions.)

The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on motions to compel initial responses or deem admissions admitted is that the other party failed to respond within the designated time.

Under Code of Civil Procedure sections 2033.280(c) (Admissions), 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court will sanction each Defendant, and counsel of record, \$350, representing one hour at the local rate of \$350, for all motions filed against each Defendant.

Sanctions are due no later than thirty (30) days from the notice of this ruling. Plaintiffs are ordered to give notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion

matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.